

Part III. Council

No. 07

Conduct and Conflict of Interest

Code

Cite this instrument as No. 07, Conduct and Conflict of Interest.

29 September 2026

Summary

A public conflict register within days, recusal before debate, and removal after a second missed recusal.

Disclosure that stays in a drawer does not change a vote. The register is public.

Part 1. Purpose

1.1 This instrument is the conflict of interest rule and the code of conduct for the chief, every councillor, and every employee who can spend money, hire, or allocate housing or a program.

Part 2. Disclosure and the register

2.1 Within 5 days of taking office or starting employment, the person must file a written disclosure with the records officer. The disclosure must list business interests, employers, and any contract the person or their immediate family has with the First Nation.

2.2 A new interest must be filed within 5 days of the person learning of it.

2.3 The records officer must post the disclosure on the public register within 2 days of filing and keep it for 10 years. A filing that is 10 days late or less is posted as late, and the appeal body issues a written warning within 14 days. A filing later than 10 days stops that person's honorarium or pay until the filing is posted.

Part 3. Recusal and benefits

3.1 The person must leave the room before debate on a matter in which the person or their immediate family has a financial interest. The person must not move, second, or vote. Constitution section 4.9 applies to pay, honoraria, travel, and contracts.

3.2 A missed recusal suspends the person's honorarium or authority to spend for 30 days. The appeal body must issue that suspension in writing within 14 days of confirming the miss. A second missed recusal in the same term: the appeal body must remove the person from office or employment. Removal takes effect 7 days after the written decision unless a court stays it within those 7 days.

3.3 A gift, or gifts from one source in one year, worth more than \$100 must be reported within 10 days. A gift from a person who is seeking a contract, a job, or a house must be refused. If it is accepted, it must be turned over to the First Nation within 5 days, and the person must not take part in that decision. Failure to turn it over is a missed recusal under section 3.2.

Part 4. Conduct

4.1 The person must not use information obtained in office for a private contract. If the person does, the appeal body must order repayment of the private gain within 30 days and remove the person from the decision. A second finding removes the person from office or employment on the same 7 day rule as section 3.2.

4.2 The person must not tell staff to break this set. A direction to break it is void. Staff must refuse it in writing within 2 days and send the refusal to the appeal body. Staff who comply with a void direction are subject to section 4.1. Staff who refuse must not be disciplined for the refusal. Discipline within 180 days is presumed reprisal under the whistleblower instrument unless written reasons are filed with the appeal body within 10 days of the discipline.

4.3 This instrument does not try a crime. Theft, fraud, and threats are matters for the police. An internal finding is about office, pay, and repayment only.

Part 5. Amendment

5.1 Council must not amend this conduct instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 The electoral officer posts the full text at least 30 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

5.3 The change passes if a majority of the votes cast are yes and at least 25 percent of the electors vote. A change that would remove a check named in the constitution passes only if a majority of all electors vote yes. If that count is not met, the change is void.

5.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

5.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.